14. Punjab Termination of Agreements Act in 2004

15. 2G spectrum case verdict and the mandatory auctioning of natural resources across all sectors in 2012

5. A Court of Record

As a Court of Record, the Supreme Court has two powers:

(a) The judgements, proceedings and acts of the Supreme Court are recorded for perpetual memory and testimony. These records are admitted to be of evidentiary value and cannot be questioned when produced before any court. They are recognised as legal precedents and legal references.

(b) It has power to punish for contempt of itself. In 1991, the Supreme Court has ruled that it has power to punish for contempt not only of itself but also of high courts, subordinate courts and tribunals functioning in the entire country.

Contempt of Courts Act (1971) In 1961, the government appointed a special committee under the chairmanship of H.N. Sanyal, the then Additional Solicitor General of India, to examine the law relating to the contempt of courts. This committee submitted its report in 1963. Based on the recommendations made by the committee, the Contempt of Courts Act, 1971 was enacted by the Parliament.

Under the Act, the contempt of court may be civil or criminal. The civil contempt means wilful disobedience to any judgement, order, writ or other process of a court or wilful breach of an undertaking given to a court. The criminal contempt, on the other hand, means the publication of any matter or doing an act which—(i) scandalises or lowers the authority of a court; or (ii) prejudices or interferes with the due course of a judicial proceeding; or (iii) interferes or obstructs the administration of justice in any other manner.

However, innocent publication and distribution of matter, fair and accurate report of judicial proceedings and fair criticism of judicial acts do not amount to contempt of court.

Under the Act, a contempt of court is punishable with simple imprisonment for a term upto six months or with fine upto ₹2,000 or with both.

The Act also provides that no court shall initiate any proceedings of contempt after the expiry of one year from the date on which the contempt is alleged to have been committed.

Further, this Act is not applicable to contempt of Nyaya Panchayats or other village courts which have been established for the administration of justice.

6. Power of Judicial Review

Judicial review is the power of the Supreme Court to examine the constitutionality of legislative enactments and executive orders of both the Central and state governments. On examination, if they are found to be violative of the Constitution (*ultra-vires*), they can be declared as illegal, unconstitutional and invalid (null and void) by the Supreme Court. Consequently, they cannot be enforced by the Government.

7. Review Jurisdiction